

**RECORD OF PROCEEDINGS FOR THE GOVERNING BODY
OF THE CITY OF CHEYENNE**

Office of City Clerk

August 23, 2010

The Governing Body of the City of Cheyenne met in regular session on this date beginning at 6:02 p.m. in Council Chambers. Present were: MAYOR - Richard L. Kaysen; COUNCIL MEMBERS - Ms. Ash, Mr. Brown, Ms. Broyles, Ms. Case, Mr. Collins, Mr. Pierson, Dr. Rinne, Mr. Spiker and Mr. Valdez. Also present: Carol Intlekofer, City Clerk; Barb Dorr, City Treasurer, and Dan White, City Attorney. The pledge of allegiance was recited.

Consent Agenda. (All agenda items listed with the designation of [CA] are considered to be routine items by the governing body and will be enacted by one motion. There will be no separate discussion on these items unless a member of the governing body so requests and support by two other members is received. Any item removed from the Consent Agenda will be considered in its normal sequence on the agenda.) Mr. Brown moved to approve Consent Agenda items, seconded by Mr. Pierson. Motion carried. Voting "yes" – all members of the governing body.

[CA] Minutes from Regular Meeting of the Governing Body on August 9, 2010. Motion (per Consent Agenda) carried.

[CA] Minutes from Vouchers Meeting of the Governing Body on August 16, 2010. Motion (per Consent Agenda) carried.

Mr. Valdez moved to approve payment of vouchers as presented, seconded by Mr. Spiker. Discussion followed concerning a voucher payable to Cheyenne Regional Airport (\$200,000.00 for infrastructure improvements) and issues regarding American Eagle Airline's flight schedule and lack of notification to the public regarding reduced flights in/out of Cheyenne, pre-sold tickets for discontinued flights, and whether the airline was in the process of being sold. Mayor Kaysen advised several community officials are communicating with American Eagle about concerns. During comments Dr. Rinne stated, as a point of information, that although he is the City Council representative to the Airport Board, he does not review the Airport's contracts they may enter into with other entities. Motion carried. Voting "yes" – all members of the governing body.

"An Ordinance repealing Chapter 5.72, Public Transport, in its entirety and re-creating Chapter 5.72, Public Transportation, of Title 5, Business Licenses and Regulations, of the Cheyenne City Code" -- referred to Finance Committee (due to postponement from 7/26/2010).

"An Ordinance amending Section 10.08.010, State Law adopted, of Chapter 10.08, State Traffic Laws Adopted, of Title 10, Vehicle and Traffic, of Cheyenne City Code pertaining to Ignition Interlock Licenses" -- referred to Finance Committee (sponsor - Mr. Brown).

"An Ordinance adopting water rates to be charged to users of the Cheyenne water system for the purpose of mineral exploration outside of the City in Laramie County and other portions of southeast Wyoming" -- referred to Finance Committee (sponsor - Mr. Collins).

“A Resolution authorizing submission of a Mineral Royalty Capital Construction Account Grant (Chapter 3) application to the State Loan and Investment Board on behalf of the Governing Body of the City of Cheyenne to install storm sewer on Snyder Avenue, between Pershing Boulevard and Randall Avenue.” Reporting for Finance Committee, Mr. Brown moved to adopt, seconded by Mr. Valdez. Mr. Brown moved to amend the date contained in the 4th Whereas clause from Sept. 16, 2010 to Jan. 20, 2011, seconded by Mr. Valdez. Motion to amend carried. Voting “yes” – all members of the governing body. Main motion as amended carried. Voting “yes” – all members of the governing body. (#5234)

“A Resolution authorizing submission of a Mineral Royalty Capital Construction account grant (Chapter 3) application to the State Loan and Investment Board on behalf of the Governing Body of the City of Cheyenne for the Cox Parking Garage induction lighting retrofit project.” Mr. Brown moved to adopt, seconded by Mr. Valdez. Mr. Brown moved to amend the date contained in the 5th Whereas clause from Sept. 16, 2010 to Jan. 20, 2011, seconded by Mr. Valdez. Motion to amend carried. Voting “yes” – all members of the governing body. Upon inquiry, Vicki Nemecek, Asst. Public Works Director, clarified induction lighting is a form of fluorescent lighting that results in energy savings. She reviewed estimated annual energy cost savings, and advised Long Building Technologies is putting the project together and that the project would be put out to bid. Upon inquiry, City Treasurer Barb Dorr verified the City owns the parking garage. Comments followed on the City’s agreement with the County regarding use of the garage and maintenance costs. Main motion as amended carried. Voting “yes” – all members of the governing body with the exception of Ms. Ash voting “no”. (#5235)

“A Resolution authorizing submission of a Mineral Royalty Capital Construction account grant (Chapter 3) application to the State Loan and Investment Board on behalf of the Governing Body of the City of Cheyenne for an early warning system for Cheyenne’s drinking water.” Mr. Brown moved to adopt, seconded by Mr. Valdez. Mr. Brown moved to amend the date contained in the 5th Whereas clause from Sept. 16, 2010 to Jan. 20, 2011, seconded by Ms. Broyles. Motion to amend carried. Voting “yes” – all members of the governing body. Upon inquiry, Tim Wilson, BOPU Director, explained the system will provide monitoring of Cheyenne’s drinking water while in the distribution system, and would alert BOPU if any chemical was introduced accidentally or intentionally into the drinking water system. He clarified the funding request is for 5 units to be placed throughout the city, and provided information on BOPU’s funding participation, and system software, installation, communication equipment and maintenance involved. Main motion as amended carried. Voting “yes” – all members of the governing body. (#5236)

“A Resolution prioritizing the City of Cheyenne’s three applications to the State Loan and Investment Board on behalf of the Governing Body of the City of Cheyenne for Mineral Royalty Capital Construction account (Chapter 3) funds.” Mr. Brown moved to adopt, seconded by Mr. Valdez. Mr. Brown moved to amend the date contained in the 3rd Whereas clause from Sept. 16, 2010 to Jan. 20, 2011, seconded by Mr. Valdez. Upon inquiry, Cindy Schneider, Grants Manager, clarified the amendment request is due to an oversight regarding the date of the SLIB meeting. Motion to amend carried. Voting “yes” – all members of the governing body. Upon inquiry, Ms. Schneider and Mayor Kaysen reviewed the administrative process utilized in proposing projects for funding requests and determination of the prioritization of projects.

Discussion followed on prioritization of the proposed projects. Mr. Pierson moved to amend the priority listing to switch priority #2 (Cox Parking Garage Induction Lighting) to #3, and priority #3 (BOPU early warning system for drinking water) to #2, seconded by Mr. Collins. Motion to amend carried. Voting “yes” – all members of the governing body. Main motion as twice amended carried. Voting “yes” – all members of the governing body. (#5237)

[CA] “A Resolution designating the Director of Purchasing as Agent for the City of Cheyenne for the purpose of organizing and holding a Surplus Municipal Property Auction at a time convenient for the City” -- referred to Finance Committee (sponsor - Mr. Brown).

[CA] “A Resolution authorizing the Mayor and the City Clerk to sign a Final Plat for Woodhaven Subdivision, a replat of Lots 1 & 2, Block One, Farson Addition and Lots 1 through 14 inclusive, Dry Creek Twin Homes Subdivision, Cheyenne, Wyoming (located between Wills Road and McCann Avenue, south of the Dry Creek Channel)” -- referred to Public Services Committee (sponsor - Ms. Ash).

[CA] “A Resolution allowing the Governing Body to utilize funds in the Annexation Revolving Loan Fund to facilitate extension of infrastructure to support economic development efforts in Cheyenne” -- referred to Finance Committee (sponsors - Ms. Ash, Ms. Broyles, Mr. Brown and Mr. Pierson).

[CA] “A Resolution approving Temporary User Water Service Agreements with A & W Water Service, Inc., and Western Environmental Services, Inc. for the purpose of drilling wells for the exploration and development of oil wells and authorizing the Board of Public Utilities to approve future applications for Temporary User Water Service Agreements” -- referred to Finance Committee (sponsor - Mr. Valdez).

[CA] Contract between the City of Cheyenne Police Department Victim Witness Program and the State of Wyoming Division of Victim Services for services to victims of crime. Motion (per Consent Agenda) carried (funding to the City in amount of \$138,418.93 annually). (#5583)

[CA] Contract Employment Agreement between the City of Cheyenne Police Department and Tina Henderson for crime victim assistance services. Motion (per Consent Agenda) carried. (#5584)

[CA] Contract Employment Agreement between the City of Cheyenne Police Department and Brenda Johnson for crime victim assistance services. Motion (per Consent Agenda) carried. (#5585)

[CA] Contract Employment Agreement between the City of Cheyenne Police Department and Leslie Burch for crime victim assistance services. Motion (per Consent Agenda) carried. (#5586)

[CA] Memorandum of Understanding between the City of Cheyenne and Granite Peak Development LLC to facilitate extension of infrastructure to support economic development efforts in Cheyenne -- referred to Finance Committee.

[CA] Contract Modification #3 to Contract #5477 between the City of Cheyenne and Recco, Inc. d/b/a Five-R Co. to substitute 277 volt heaters with 208 volt heaters to accommodate

existing electrical system at the City Transfer Station (State Land and Investment Board fund). Motion (per Consent Agenda) carried (amount not to exceed \$1,535.35). (#5477)

[CA] Amendment #1 to Cooperative Agreement #5512 between the City of Cheyenne and Wyoming Department of Transportation for Cheyenne Marginal-Vandehei Interchange (2007-2010 1% Sales Tax). Motion (per Consent Agenda) carried (City amount not to exceed \$900.00). (#5512)

[CA] Amendment #1 to Energy Performance Contract #5516 between the City of Cheyenne and Long Building Technologies, Inc. to remove lamp replacement at Lions, Pioneer, Brimmer, Powers and Dutcher Ball Fields and replace with lighting fixture replacement at Brimmer Fields #1 and #2 (Department of Energy and American Recovery and Reinvestment Act (ARRA) grants) -- referred to Finance Committee.

[CA] Amendment #2 to Energy Performance Contract #5516 between the City of Cheyenne and Long Building Technologies, Inc. to add lighting fixture replacement at Brimmer Field #3 (2007-2010 1% Sales Tax and athletic players fees) -- referred to Finance Committee.

[CA] Consideration of Bid #R-5-11 for furnishing one new loader/backhoe for the City of Cheyenne Street & Alley Division (2007-2010 1% Sales Tax – Storm Sewer Maintenance Fund) – referred to Finance Committee.

Appointment of Lorna Sanders to the Housing & Community Development Advisory Council. Mr. Collins moved to approve, seconded by Mr. Brown. Motion carried. Voting “yes” – all members of the governing body with the exception of Mayor Kaysen who did not vote (Mayoral appointment).

[CA] Community Facilities Fees Report for Fiscal Year ending June 30, 2010 -- referred to Finance Committee.

Announcement was made of the re-appointments of Dean Meyer, Scott Thomas and Mary Bienz to the Public Transit Advisory Board to be confirmed September 13, 2010.

Announcement was made of a Public Hearing to be held September 13, 2010 at 6:00 p.m. in City Council Chambers for a transfer of ownership for a retail liquor license application filed with the City Clerk's Office for Lambousis Revocable Trust d/b/a The Mayflower, 112 W. 17th St., Cheyenne, WY. (License currently held by Bedrock Seafood, Inc. d/b/a The Mayflower, 112 W. 17th St., Cheyenne, WY.)

Announcement was made that due to the Labor Day Holiday on Monday, September 6, 2010, the following meetings have been rescheduled for Tuesday, September 7, 2010: Finance Committee at 11:00 a.m., Room 122; Vouchers Meeting of the Governing Body at Noon, City Council Chambers, and Public Services Committee at 12:15 p.m., Room 122, Municipal Building, 2101 O'Neil Ave., Cheyenne, WY.

Announcement was made of the appointment of James A. Martin as Chief of Fire and Rescue for the City of Cheyenne, to be confirmed September 13, 2010.

There being no further business to come before the governing body, Mayor Kaysen adjourned the meeting at 6:36 p.m.

Submitted by,

Carol Intlekofer, MMC
City Clerk

This notice is available in alternative, accessible formats upon request.

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